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Velocita Aerospace S.p.A. — Internal Memo: ITAR Re-classification (RESTRICTED)

Document kind: itar_memo

Entity: Velocita Aerospace S.p.A. — Italy

Registration: IT-TO-1099443

Domain: velocita-aero.it

Address: Corso Marche 79, 10146 Torino

Directors: Ing. Stefano Rinaldi, Dott.ssa Giulia Berto

Owner reference: Kitsune (user id 5)

Contact email: kitsune@vaultpost.io

Payment wallet BTC: bc1qk1t5un36x7m8n9p0q1r2s3t4u5v6w7x8y9z0a

VELOCITA AEROSPACE S.p.A. — INTERNAL MEMORANDUM

RESTRICTED — TRADE COMPLIANCE / EXPORT CONTROL · DO NOT FORWARD

To : Ing. Stefano Rinaldi (CEO), Dott.ssa Giulia Berto (CFO),

Avv. Paolo Santi (General Counsel), Ing. Marta Conforti (VP Engineering)

From : Ing. Roberta D'Amico, Head of Trade Compliance — r.damico@velocita-aero.it

Date : 2026-01-17

Subject : Re-classification request — Subassembly VLX-744 under USML/EAR; TAA implications

1. Background

Subassembly VLX-744 is a tertiary actuator harness developed under Velocita work-package VEL-WP-2024-31, integrated into Component VLX-7 (radar-tracking module). The VLX-7 component is sold to two US prime contractors (Stanford Aerospace and Halberd Defense) under purchase orders that flow down DFARS 252.225-7048 and ITAR §126.18 acknowledgements. VLX-744 has historically been classified internally as EAR99 on the basis that the harness, in isolation, is a commercial-grade component.

2. Trigger for re-classification

Following the 2025-Q4 engineering change request ECR-2025-1147 (Doc#27), VLX-744 now carries firmware (FW-VLX744-1.4.2) that implements the proprietary jitter-compensation algorithm developed under the same WP. Two outside reviews (Studio Tortelli, Roma; and informal counsel input from Halberd's compliance team) concur that the firmware brings the subassembly within the scope of:

- (i) USML Category XI(c)(1) — 'electronic equipment, items, components designed for jamming or detection avoidance', or
- (ii) ECCN 7A611.b (if a Commerce jurisdiction determination is sought).

3. Recommended action

- (a) Submit a Commodity Jurisdiction (CJ) request to DDTC within 30 days. Estimated turnaround 90-120 days. Engage Roberts & Pierson LLP (Washington) to draft.
- (b) Pending CJ outcome, treat VLX-744 (with FW 1.4.2 installed) as USML XI(c)(1) for all internal handling: physical access by US persons only, dual-control custody for any movement, mandatory export licence for any non-US destination.
- (c) Issue an internal stop-ship for any inventory not yet matched to a TAA-covered customer purchase order. Current inventory: 412 units in Torino, 88 units in transit to Stanford Aerospace's Phoenix facility.

(d) Notify the two US primes in writing under the standard TAA notification clauses (Stanford: T. Holloway, t.holloway@stanford-aero.com; Halberd: R. Kessler, r.kessler@halberdddefense.com). Recommended date: 2026-01-23.

4. Internal risk if no action taken

Continued shipments at the EAR99 classification, if challenged retrospectively, could be characterised as unlicensed ITAR exports — penalties under 22 U.S.C. §2778 reach USD 1.197 M per violation (civil) and criminal exposure for knowing violations. In the Italian forum, Art. 21 D.Lgs. 221/2017 mirrors much of this.

5. Confidentiality and distribution

This memorandum is RESTRICTED. Do not forward, do not print on shared printers, do not discuss in non-secure channels. Authorised recipients only (named above).

Trade Compliance log entry: TC-LOG-2026-009.

Acknowledgement requested by 2026-01-20 by encrypted reply to r.damico@velocita-aero.it.

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